



CHAPTER xxxiv.

An Act to confirm a Provisional Order of the Local A.D. 1916.
Government Board relating to Stafford.

[3rd August 1916.]

WHEREAS the Local Government Board have made the
Provisional Order which as amended is set forth in the
schedule hereto under the provisions of the Local Government 51 & 52 Vict.
c. 41.
Act 1888:

And whereas it is requisite that the said Order as amended
should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Order as amended and set out in the schedule hereto Order in
schedule
confirmed.
shall be and the same is hereby confirmed and all the provisions
thereof shall have full validity and force.

2. This Act may be cited as the Local Government Board's Short title.
Provisional Order Confirmation (No. 3) Act 1916.

A.D. 1916.

S C H E D U L E.

BOROUGH OF STAFFORD.

Stafford *Provisional Order made in pursuance of the Local Government*
Order. *Act 1888 for extending a Borough.*

To the Mayor Aldermen and Burgesses of the Borough of
Stafford ; —

To the Justices of the Peace for the said Borough ; —

To the Justices of the Peace for the County of Stafford in
Quarter Sessions assembled ; —

To the County Council of Stafford ; —

To the Rural District Council of Stafford ; —

To the Guardians of the Poor of the Stafford Union ; —

To the Parish Councils of Castle Church Seighford and Tilling-
ton ; —

To the Chairman of the Parish Meeting of the Parish of Cress-
well and the Township of Hopton and Coton ; —

To the Overseers of the Poor of each of the Parishes of Castle
Church Cresswell Seighford Stafford and Tillington and of
the Township of Hopton and Coton ; —

And to all others whom it may concern.

51 & 52 Vict. c. 41. WHEREAS by Section 54 of the Local Government Act 1888 the
Local Government Board are empowered to make a Provisional Order
for altering the boundary of any Borough ;

And whereas the Borough of Stafford in the County of Stafford
is a Borough within the meaning of the Local Government Act 1888
and the inhabitants are a body corporate by the name of the Mayor
Aldermen and Burgesses of the Borough of Stafford and act by the

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxxiv.]
Provisional Order Confirmation (No. 3) Act, 1916.

Council of the said Borough which now consists of the Mayor (who is also a Councillor) eight Aldermen and twenty-three other Councillors and the said Borough is for the purpose of the election of Councillors divided into two wards termed respectively the East Ward and the West Ward;

A.D. 1916.

*Stafford
Order.*

And whereas the said Borough is co-extensive with the Parish of Stafford and is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council are the Urban District Council;

And whereas the said Borough has a separate commission of the peace;

And whereas the unrepealed provisions of the Local Acts specified in Part I. of the Schedule to this Order and of the Confirmation Acts specified in Part II. of the said Schedule so far as the last-mentioned Acts relate to the Orders specified in that Schedule are in force in the said Borough;

And whereas the provisions of—

(a) The Infectious Disease (Prevention) Act 1890;

53 & 54 Vict. c. 34.

(b) The Public Health Acts Amendment Act 1890;

53 & 54 Vict. c. 59.

(c) The Baths and Washhouses Acts 1846 to 1899; and

9 & 10 Vict. c. 74.
 10 & 11 Vict. c. 61.
 41 & 42 Vict. c. 14.
 45 & 46 Vict. c. 30.
 59 & 60 Vict. c. 59.
 62 & 63 Vict. c. 29.
 55 & 56 Vict. c. 53.
 56 Vict. c. 11.
 1 Edw. 7. c. 19.

(d) The Public Libraries Acts 1892 to 1901;

are in force in the said Borough;

And whereas the Council of the said Borough are the authority for the execution of the Burial Acts 1852 to 1906 within the Borough;

15 & 16 Vict. c. 85.
 6 Edw. 7. c. 44.

And whereas the Parishes of Castle Church and Tillington and the Township of Hopton and Coton in the County of Stafford immediately adjoin the said Borough and the Parish of Seighford in the said County immediately adjoins the Parishes of Castle Church and Tillington and all those parishes or townships and the Parishes of Cresswell and Worston in the said County are contributory places in the Rural District of Stafford and are subject to the jurisdiction of the Rural District Council of Stafford and three Rural District Councillors are elected for the Parish of Castle Church one Rural District Councillor is elected for the Township of Hopton and Coton the Parish of Seighford is for the purpose of the election of three Rural District Councillors united with the Parish of Worston and the Parish of Tillington is for the purpose of the election of three Rural District Councillors united with the Parish of Cresswell;

And whereas the provisions of the Infectious Disease (Prevention) Act 1890 and the provisions of Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts are in force in the said Rural District;

[Ch. xxxiv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Order Confirmation (No. 3) Act, 1916.

A.D. 1916.

—
Stafford
Order.

3 & 4 Will. 4.
c. 90.

And whereas the provisions of the Lighting and Watching Act 1833 are in force in the Parish of Tillington and in part of the Parish of Castle Church;

And whereas the Parishes of Castle Church Cresswell Seighford Stafford Tillington and Worston and the Township of Hopton and Coton are included in the Stafford Union and forty-seven Guardians represent the several Parishes and Townships comprised in that Union upon the Board of Guardians of that Union;

And whereas the Parish of Stafford is for the purpose of the election of Guardians divided into two wards which are respectively co-extensive with and bear the same names as the municipal wards of the said Borough and eight Guardians are elected for each of the said wards and the Rural District Councillors elected for the Parishes of Castle Church Seighford and Worston Tillington and Cresswell and the Township of Hopton and Coton are the representatives of the said Parishes and Township on the said Board of Guardians;

56 & 57 Vict.
c. 73.

And whereas the Parishes of Castle Church Seighford and Tillington and the Township of Hopton and Coton are rural parishes within the meaning of the Local Government Act 1894 for which Parish Councils have been or are entitled to be established;

2 Edw. 7.
c. 42.

And whereas in pursuance of the Education Act 1902 and of an agreement made under Section 20 of that Act the said Borough and Parishes or Townships form part of the area of the County Council of Stafford as the local education authority:

51 & 52 Vict.
c. 41.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect:—

Definitions.

Art. I. In this Order—

- (1) The expression "the commencement of this Order" means the First day of April One thousand nine hundred and seventeen;
- (2) The expression "the existing Borough" means the Borough of Stafford as it existed immediately prior to the commencement of this Order;
- (3) The expression "the Borough" means the existing Borough as extended by this Order;
- (4) The expression "the Corporation" means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or of the Borough acting by the Council;

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxxiv.]
Provisional Order Confirmation (No. 3) Act, 1916.

- (5) The expressions "the County" and "the County Council" mean respectively the Administrative County of Stafford and the County Council of that County; A.D. 1916.
Stafford
Order.
- (6) The expressions "the Rural District" and "the Rural Council" mean respectively the Rural District of Stafford and the Rural District Council of that District;
- (7) The expression "the maps" means the two maps each marked "Map of the Borough of Stafford as extended 1917" and sealed with the official seal of the Local Government Board;
- (8) The expression "the added areas" means the parts of the Rural District added to the existing Borough by this Order;
- (9) The expressions "the added part of Seighford" and "the added part of Hopton and Coton" mean respectively the parts of that Parish and Township which are coloured purple and yellow on the maps the expression "the added part of Castle Church" means the part of that Parish containing the areas which are coloured light blue and dark blue on the maps the expression "the added part of Tillington" means the part of that Parish containing the areas which are coloured light green and dark green on the maps and the expression "the excluded part of Tillington" means the remaining part of that Parish;
- (10) The expressions "the existing Parish of Castle Church" "the existing Parish of Cresswell" "the existing Township of Hopton and Coton" "the existing Parish of Seighford" and "the existing Parish of Stafford" mean in each case the Parish or Township as it existed immediately prior to the commencement of this Order and the expressions "the Parish of Castle Church" "the Parish of Cresswell" "the Township of Hopton and Coton" "the Parish of Seighford" and "the Parish of Stafford" mean in each case the Parish or Township as altered by this Order;
- (11) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;
- (12) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same.

[Ch. xxxiv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Order Confirmation (No. 3) Act, 1916.

A.D. 1916.

*Stafford
Order.*

Commence-
ment of
Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the First day of April One thousand nine hundred and seventeen:

Date of
operation
of Order for
parish bur-
gess lists &c.

51 Vict. c. 10.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the Borough under the Municipal Corporations Acts of the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 of any election under the Act of 1894 to be held in the months of March and April One thousand nine hundred and seventeen of the revision of the basis or standard of the county rate and of the appointment of Overseers this Order shall operate at such earlier date as may be necessary.

Extension of
Borough.

Art. III.—(1) The boundary of the existing Borough the area whereof is coloured pink on the maps shall be altered so as to include in addition to that area so much of the Rural District as comprises the added part of Castle Church the added part of Hopton and Coton the added part of Seighford and the added part of Tillington.

(2) The boundary of the Borough shall be that shown by the red line on the maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

Deposit of
maps.

Art. IV.—(1) One of the maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order. Copies of the map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the Clerk of the County Council to the Clerk to the Rural Council to the Registrar-General to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Board of Trade and to the Board of Agriculture and Fisheries.

Copies of
map to be
evidence.

(2) Copies of or extracts from the map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *primâ facie* evidence of the contents of the map so far as it relates to the boundaries of the Borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxxiv.]
Provisional Order Confirmation (No. 3) Act, 1916.

determined by the Corporation All fees so received shall be carried to the credit of the borough fund. A.D. 1916.

*Stafford
Order.*

Art. V. The powers and duties of the justices of the peace appointed for the existing Borough and of the clerk to those justices shall extend to and apply throughout the Borough:

Powers and
duties of
justices &c.
extended.

Provided that every person committing an offence in any part of the added areas prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made:

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices in relation to any matter arising in or concerning any part of the added areas may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

Art. VI.—(1) For the purposes of the parish burgess lists and burgess roll and the other lists to be made under the Municipal Corporations Acts and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have always been part of the Borough.

Parish bur-
gess lists &c.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.

(3) Where any difficulty arising in the year One thousand nine hundred and seventeen in giving effect to the provisions of this Order can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers that alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk of the existing Borough or the clerk of the County Council as the case may require and the Overseers of the Poor shall render such assistance as may be requisite for the purpose of the said alteration re-arrangement or action by the town clerk or clerk of the County Council as the case may be and that alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions

[Ch. xxxiv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Order Confirmation (No. 3) Act, 1916.

A.D. 1916. of this Order and may vary so far as is requisite the provisions in force with regard to the said lists roll and registers.

*Stafford
Order.*

Division into
wards.

Art. VII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

(1) For the purposes of the election of Councillors the Borough shall continue to be divided into two wards:

(2) The added part of Seighford that portion of the added part of Castle Church which is coloured light blue on the maps and that portion of the added part of Tillington which is coloured light green on the maps shall be included in the West Ward and the added part of Hopton and Coton that portion of the added part of Castle Church which is coloured dark blue on the maps and that portion of the added part of Tillington which is coloured dark green on the maps shall be included in the East Ward:

(3) The Councillors representing the East Ward and the West Ward respectively who are in office at the commencement of this Order shall be deemed from and after that date to represent those Wards respectively as altered by this Article.

Local Acts
and Orders.
11 Geo. 4.
c. xlv.

38 & 39 Vict.
c. cxi.

Art. VIII.—(1) The unrepealed provisions of the Local Act passed in the eleventh year of the reign of His late Majesty King George the Fourth and intituled “An Act for paving lighting watching cleansing “ regulating and improving the Streets Lanes and other public Passages “ and Places within the Borough of Stafford in the County of Stafford ” and so much of the Local Government Board's Provisional Orders Confirmation (Abingdon Barnsley &c.) Act 1875 as relates to the Provisional Order affecting the Borough of Stafford thereby confirmed shall be repealed.

(2) Subject to the provisions of this Order the unrepealed provisions of the Local Acts and of the Confirmation Acts specified in the Schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in that Schedule and of any other Local Act (including any Local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing Borough or the Corporation as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation thereof.

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxxiv.]
Provisional Order Confirmation (No. 3) Act, 1916.

(3) The Electric Lighting Orders Confirmation (No. 8) Act 1890 so far as the same relates to the Stafford Electric Lighting Order 1890 shall have effect as if the undermentioned streets were included in the Third Schedule to that Order as streets not repairable by the local authority which may be broken up by the Corporation in pursuance of the special powers granted by that Order that is to say ;—

A.D. 1916.

*Stafford
Order.*

53 & 54 Vict.
c. cxviii.

Rowley Avenue Lawn Road Crescent Road and St. John's Road.

(4) The area of supply for the purposes of the Stafford Electric Lighting Order 1903 which was confirmed by the Electric Lighting Orders Confirmation (No. 3) Act 1903 and within the meaning of Section 4 of the Schedule to the Electric Lighting (Clauses) Act 1899 shall be limited to that part of the area described in the First Schedule to the said Order which comprises the part of the Parish of Baswich which is coloured brown on the maps and such of the provisions of the Order as authorise or relate to a supply of electrical energy beyond the area of supply as hereby limited shall cease to have effect.

3 Edw. 7.
c. xlvii.

Art. IX. Subject to the provisions of this Order—

Byelaws &c.

- (1) All byelaws orders and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing Borough shall thenceforth apply to the Borough until or except in so far as any such byelaws orders or regulations or list of tolls or table of fees and payments or scale of charges may be altered or repealed :
- (2) All byelaws and regulations made by the Rural Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas and all orders made by the County Council which are in force therein (so far as the same or similar orders have been or could have been made by the Corporation) shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Rural Council or have been sent to the surveyor or clerk to the Rural Council one month at least before that date and have not been disapproved by that Council As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the Borough

[Ch. xxxiv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Order Confirmation (No. 3) Act, 1916.

A.D. 1916.

*Stafford
Order.*

were referred to therein instead of the Rural Council and the Rural District respectively. Provided that any proceedings which if this Order had not been made might have been taken by the Rural Council for any offence committed before the commencement of this Order against any byelaws and regulations made by the Rural Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for the Rural Council.

Orders under
Shop Hours
Act 1904 and
Shops Act
1912.

4 Edw. 7. c. 31.
2 Geo. 5. c. 3.

Art. X. Any order made under the Shop Hours Act 1904 or under the Shops Act 1912 and in force immediately before the commencement of this Order in any area affected by this Order shall unless or until it is revoked remain in force and apply to the area to which it applies immediately before the commencement of this Order.

Town clerk
and other
officers con-
tinued.

Art. XI.—(1) The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Borough
auditors.

(2) The auditors of the existing Borough who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the Borough auditors until the next ordinary day of election of Borough auditors.

Compensa-
tion to exist-
ing officers.

Art. XII.—(1) Every clerk to justices and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the Borough and in every other case out of the borough fund and borough rate of the

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxxiv.]
Provisional Order Confirmation (No. 3) Act, 1916.

Borough and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications
Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

A.D. 1916.

*Stafford
Order.*

(2) For the purposes of subdivision (1) of this Article any clerk to justices or officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the Secretary of State or the County Council or the Standing Joint Committee or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

(3) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

Art. XIII.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Rural Council in relation exclusively to any part of the added areas shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough.

*Actions &c.
not to abate.*

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Rural Council or their predecessors in relation exclusively to any part of the added areas shall be of as full force and effect against or in favour of the Corporation of the Borough and may be continued and enforced as fully and effectually as if instead of the Rural Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

*Saving for
contracts &c.*

Art. XIV. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

*Corporation
property &c.*

[Ch. xxxiv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Order Confirmation (No. 3) Act, 1916.

A.D. 1916.

Art. XV. Subject to the provisions of this Order—

*Stafford
Order.*

Property &c.
of Rural
Council.

(1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council in relation exclusively to any part of the added areas shall by virtue of this Order be transferred to and vest in and attach to the Corporation as Urban District Council and any property and liabilities vested in or attached to the Rural Council in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888:

Cesser of jurisdic-
tion of Rural
Council.

(2) The Rural Council shall cease to exercise any powers or have any duties within any part of the added areas:

Arrears of
rates &c.

(3) All arrears of rates made by any Overseers of the Poor for the purposes of the Public Health Acts or for highway expenses or for the purposes of the Lighting and Watching Act 1833 which at the commencement of this Order are due or owing in respect of hereditaments in the added areas may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied or in the case of rates made in the existing Parishes of Castle Church and Tillington for the purposes of the Lighting and Watching Act 1833 towards defraying the expenses incurred by the Parish Councils of those parishes under that Act and the balances (if any) shall be paid to the Corporation:

Adjustment
of balances.

(4) Any balances in the hands of the Overseers of the Parish of Tillington and the existing Parishes of Castle Church and Seighford and the existing Township of Hopton and Coton at or immediately before the commencement of this Order and any sum collected after the commencement of this Order by the Overseers of the Parishes of Castle Church Seighford and Stafford and the Township of Hopton and Coton in respect of any rate made before that date and levied upon any rateable hereditament in the added areas shall be a matter for adjustment under Section 62 of the Act of 1888:

Adaptation
of provisions
as to adjust-
ment.

(5) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect as if in subsections (5) (6) and (7) thereof the expression:

"Council" included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Local Government Board may sanction:

A.D. 1916.

*Stafford
Order.*

- (6) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order so far as it relates to the abolition or the alteration of the area of any existing Parish or Township that section shall have effect—

(a) As if the Overseers of the Parishes or Townships of Castle Church Cresswell Hopton and Coton Seighford and Stafford and the persons who immediately before the commencement of this Order were the Overseers of the Parish of Tillington or where the circumstances of the case so require any persons who may be substituted for those persons by an order of the Local Government Board were within the meaning of the said section as applied by this Article authorities affected by this Order;

(b) As if the poor rate or any other rate leviable in pursuance of the said section as applied by this Article were substituted for any fund mentioned in the section; and

(c) As if for subsections (6) and (7) of the said section there were substituted the subsections hereunto appended that is to say:—

" (6) If it is necessary for the purpose of giving
" effect to any agreement or award for an adjust-
" ment that a separate rate shall be levied in part
" of a parish only the agreement or award may
" authorise the making of such a separate rate as if
" it were a poor rate and as if the part of the
" parish on which it is to be levied were a whole
" parish."

[Ch. xxxiv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Order Confirmation (No. 3) Act, 1916.

A.D. 1916.

*Stafford
Order.*

“ (7) Any capital sum paid for the purposes of
“ any adjustment or in pursuance of any order or
“ award of an arbitrator shall be applied by such
“ person in such manner and for such purpose as
“ the Local Government Board may authorise or
“ direct.”

Mortgage
debts of Cor-
poration.

Art. XVI. Subject to the provisions of this Order and to any
adjustment to be made between the Corporation and the Rural
Council:—

- (1) The liability for the repayment of any moneys borrowed by the Rural Council for the purposes of sewerage for any part of the added areas or of so much of those moneys as is owing at the commencement of this Order and for the payment of the interest thereon shall by virtue of this Order be transferred and attach to the Corporation:
- (2) So much as at the commencement of this Order will be outstanding in respect of the moneys borrowed as aforesaid by the Rural Council together with so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the district fund and general district rate of the existing Borough shall by virtue of this Order be charged upon the district fund and general district rate of the Borough and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing Borough shall by virtue of this Order be charged upon the borough fund and borough rate of the Borough:
- (3) All borrowed moneys to which this Article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable:
- (4) Nothing in this Order shall prejudicially affect any mortgage or other security which has been given in respect of any sums borrowed as aforesaid or the rights and powers of the persons entitled under such mortgage or other security to enforce the same and when for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Order the power may continue to be exercised as if this Order had not been made and the general district rate of the Borough or the borough rate

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxxiv.]
Provisional Order Confirmation (No. 3) Act, 1916.

of the Borough as the case may be shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable if this Order had not been made.

A.D. 1916.

Stafford
Order.

Art. XVII. The provisions of the Baths and Washhouses Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 and the Public Libraries Acts 1892 to 1901 shall be in force in and apply to the Borough as if the same had been adopted therein.

Adoptive
Acts.

Art. XVIII. Subject to the provisions of any Order which the Local Government Board may hereafter make the provisions of any Order heretofore made by the Local Government Board and conferring upon the Council of the existing Borough any of the matters mentioned in Section 33 of the Act of 1894 and in that Order shall be deemed to have effect as if any reference in those provisions to the existing Borough or to the existing Parish of Stafford extended and applied to the Borough or to the Parish of Stafford as the case may be.

Powers under
Section 33 of
Act of 1894.

Art. XIX.—(1) The total amount in the pound of the general district rates to be levied by the Corporation in any one year in respect of any hereditament in the added part of Castle Church and in the added part of Seighford shall—

Differential
rating.

- (a) during a period of two years from the commencement of this Order be less by one shilling and fourpence;
- (b) during a period of two years from the First day of April One thousand nine hundred and nineteen be less by one shilling;
- (c) during a period of four years from the First day of April One thousand nine hundred and twenty-one be less by eightpence; and
- (d) during a period of four years from the First day of April One thousand nine hundred and twenty-five be less by fourpence

than the total amount in the pound of the general district rates levied by the Corporation in the same year in respect of any hereditament of the like kind situate within the area of the existing Borough.

(2) The total amount in the pound of the general district rates to be levied by the Corporation in any one year in respect of any hereditament in the added part of Hopton and Coton and in the added part of Tillington shall—

- (a) during a period of four years from the commencement of this Order be less by one shilling;

[Ch. xxxiv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Order Confirmation (No. 3) Act, 1916.

A.D. 1916.
Stafford
Order.

- (b) during a period of one year from the First day of April
One thousand nine hundred and twenty-one be less by
tenpence ;
- (c) during a period of one year from the First day of April
One thousand nine hundred and twenty-two be less by
eightpence ;
- (d) during a period of one year from the First day of April
One thousand nine hundred and twenty-three be less by
sixpence ;
- (e) during a period of one year from the First day of April
One thousand nine hundred and twenty-four be less by
fourpence ; and
- (f) during a period of one year from the First day of April
One thousand nine hundred and twenty-five be less by
twopence

than the total amount in the pound of the general district rates levied by the Corporation in the same year in respect of any hereditament of the like kind situate within the area of the existing Borough.

Corporation
to be Burial
Board for
Borough.

Art. XX. The Corporation shall be the Burial Board for the Borough and shall have within the Borough to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts 1852 to 1906 Provided that no approval sanction or authorisation of the vestry of the Parish of Stafford shall be required in respect of any act of the Corporation as the Burial Board as aforesaid.

Education
agreement.

Art. XXI.—(1) The agreement made between the Corporation and the County Council dated the Eighth day of August One thousand nine hundred and three and approved by the Board of Education on the Eighteenth day of September One thousand nine hundred and three whereby the Corporation relinquished in favour of the County Council their powers and duties as local education authority for the purpose of Part III. of the Education Act 1902 shall be read and have effect as if any reference therein to the existing Borough and the Council of the existing Borough extended and applied to the Borough and the Council of the Borough.

Education
byelaws.

(2) For the purpose and subject to the provisions of the Education Acts 1870 to 1914 any byelaws in force in the existing Borough immediately before the commencement of this Order shall from and after that date apply to the Borough until revoked or altered and from and after that date any byelaws then in force in any part of the added areas shall cease to be in force.

(3) Any expenses which have been charged by the County Council under the provisions of Section 18 (1) (a) or Section 18 (1) (c) of the

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxxiv.]
Provisional Order Confirmation (No. 3) Act, 1916.

Education Act 1902 upon the existing Parish of Stafford and any parish or parishes transferred wholly or partly to the Borough of Stafford by this Order shall from the commencement of this Order be charged upon the Parish of Stafford only and any portion of such parishes not so transferred shall be free from liability to contribute towards such expenses.

A.D. 1916.
Stafford
Order.

(4) For the purposes of Section 18 (1) (d) of the Education Act 1902 the Parish of Stafford shall from the commencement of this Order be deemed to be the area which immediately prior to the appointed day formed the School District of the Stafford School Board.

Art. XXII.—(1) The added part of Castle Church the added part of Hopton and Coton and the added part of Seighford shall respectively be separated from the existing parishes and township of which they now form part and those parts and the added part of Tillington shall be amalgamated with the existing Parish of Stafford.

Alteration of
parishes.

(2) The excluded part of Tillington shall be amalgamated with the existing Parish of Cresswell.

Art. XXIII. Subject to the provisions of Section 60 of the Act of 1894 the following provisions shall have effect:—

Rural Dis-
trict Coun-
cillors and
Guardians.

(1) The number of guardians for the Stafford Union shall be reduced from forty-seven to forty-two:

(2)—(a) The Parish of Stafford shall for the purposes of the election of guardians be divided into two wards which shall respectively be co-terminous in area with and bear the same names as the wards into which the Borough is divided by Article VII. of this Order for the purposes of the election of Councillors;

(b) Eight guardians shall be assigned to each of the said wards;

(c) The persons who at the commencement of this Order are holding the office of Guardian of the Poor for the East Ward and the West Ward of the existing Parish of Stafford shall be deemed to have been elected for and shall represent the East Ward and the West Ward respectively of the Parish of Stafford upon the Board of Guardians of the Stafford Union until the date on which they would have retired if this Order had not been made:

(3) The person who at the commencement of this Order is holding the offices of Rural District Councillor and Guardian of the Poor for the existing Township of Hopton and Coton shall be deemed to have been elected for and shall represent the Township of Hopton and Coton until the date on which he would have retired if this Order had not been made:

[Ch. xxxiv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Order Confirmation (No. 3) Act, 1916.

A.D. 1916.

*Stafford
Order.*

(4)—(a) The number of Rural District Councillors and Guardians of the Poor for the Parish of Castle Church shall be reduced from three to one the number of Rural District Councillors and Guardians of the Poor for the united Parishes of Seighford and Worston shall be reduced from three to two and for the purpose of the representation of the Parish of Cresswell upon the Rural Council and the Board of Guardians of the Stafford Union one Rural District Councillor and Guardian of the Poor shall be assigned to that parish; and

(b) the Rural Council shall at their meeting held next before the commencement of this Order choose—

(i) from among the three persons who are holding the offices of Rural District Councillor and Guardian of the Poor for the existing Parish of Castle Church one person to represent on the Rural Council and the said Board of Guardians the Parish of Castle Church;

(ii) from among the three persons who are holding the said offices for the united Parishes of Seighford and Worston two persons to represent on the Rural Council and the said Board of Guardians the united Parishes of Seighford and Worston; and

(iii) from among the three persons who are holding the said offices for the united Parishes of Tillington and Cresswell one person to represent on the Rural Council and the said Board of Guardians the Parish of Cresswell:

The persons chosen to represent respectively the Parish of Castle Church the united Parishes of Seighford and Worston and the Parish of Cresswell in pursuance of this subdivision shall be deemed to have been elected for and shall represent those Parishes respectively until the date upon which they would have retired if this Order had not been made. The other five persons who at the commencement of this Order are holding the said offices for the existing Parish of Castle Church the united Parishes of Seighford and Worston and the united Parishes of Tillington and Cresswell shall go out of office on that date.

*Parish
Councils.*

Art. XXIV.—(1) Subject to the provisions of this Order the Township of Hopton and Coton shall cease to elect a Parish Council and the Parish Council of the Parish of Tillington shall cease to exist and any powers and duties transferred by the Act of 1894 to the Parish Council of Tillington or to the Parish Councils of the existing Parishes

of Castle Church and Seighford and any powers and duties which would if a Parish Council existed for the Township of Hopton and Coton be vested in or exerciseable by that Parish Council by virtue of the transfer effected by the Act of 1894 shall so far as regards the added part of Tillington the added part of Castle Church the added part of Seighford and the added part of Hopton and Coton be vested in exerciseable by and imposed on the persons and authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the added part in each case had been included in a parish in the existing Borough on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred so far as regards the added part in each case for the purpose or by virtue of the said powers and duties shall by virtue of this Order be transferred to and vest in and attach to the persons and authorities aforesaid Any property or liabilities of the said Parish Councils held or incurred otherwise than by virtue or for the purposes of the powers or duties aforesaid shall so far as regards any part of the added areas by virtue of this Order be transferred to and vest in and attach to the Corporation.

A.D. 1916.
Stafford
Order.

(2) The accounts of the Parish Council of Tillington and of their committees and officers shall be made up to the commencement of this Order and shall be audited by the District Auditor in like manner and with the like incidents and consequences as if this Order had not been made :

Audit of
accounts of
Parish
Council.

Provided that the audit may be held as soon as practicable after the commencement of this Order any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the District Auditor at the audit to be due from any person shall be paid to the treasurer of the Borough and shall be a matter for adjustment under Section 62 of the Act of 1888.

Art. XXV. Until new valuation lists are in force—

Valuation
lists.

(1) The portions of the valuation lists of the existing Parishes of Castle Church Seighford and Tillington and the existing Township of Hopton and Coton which respectively relate to hereditaments in the added part of Castle Church the added part of Seighford the added part of Tillington and the added part of Hopton and Coton shall be deemed to form part of the valuation list of the Parish of Stafford :

(2) The remaining portion of the valuation list of the existing Parish of Tillington shall be deemed to form part of the valuation list of the Parish of Cresswell :

[Ch. xxxiv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Order Confirmation (No. 3) Act, 1916.

A.D. 1916.

*Stafford
Order.*

- (3) The remaining portions of the valuation lists of the existing Parishes of Castle Church and Seighford and the existing Township of Hopton and Coton shall be deemed respectively to be the valuation lists of the Parishes of Castle Church and Seighford and the Township of Hopton and Coton.

County rate
basis.

Art. XXVI.—(1) Subject to any future revision the basis or standard of the county rate for the County shall be deemed to be altered—

- (a) By the omission therefrom of the reference to the total annual value of the property in the Parish of Tillington by the addition to the amount appearing therein as the total annual value of the property in the existing Parish of Stafford of such a sum as will represent the annual value of the property in the part of the Parish of Tillington which is included by this Order in the Parish of Stafford and by the addition to the amount appearing therein as the total annual value of the property in the existing Parish of Cresswell of such a sum as will represent the annual value of the property in the part of the Parish of Tillington which is included by this Order in the Parish of Cresswell;
- (b) By the deduction from the amount appearing therein as the total annual value of the property in the existing Parishes of Castle Church and Seighford and the existing Township of Hopton and Coton of such a sum in each case as will represent the annual value of the property in the parts of those parishes and township which are included by this Order in the Parish of Stafford and by the addition of those sums to the amount appearing therein as the total annual value of the property in the existing Parish of Stafford.

(2) For the purposes of this Article the annual value of the property in the part of a parish or township which is included by this Order in another parish shall be the amount which bears the same relation to the total annual value of the existing parish or township as the assessable value of the property in the included part of the existing parish or township bears to the total assessable value of property in the existing parish or township and the total annual value of the existing parish or township shall be the amount appearing as such in the basis or standard of the county rate.

(3) For the purposes of this Article assessable value means one-half of the rateable value according to the valuation list for the time being in force of the agricultural land together with the rateable value according to that list of the buildings and other hereditaments not

being agricultural land in the existing parish or township or in the part included in another parish as the case may require. A.D. 1916.

Art. XXVII. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the registers of parochial electors and of jury lists the parishes and township affected by this Order shall be deemed to continue unaltered until the new registers and lists come into operation : *Stafford Order.*
Saving for existing lists of parliamentary voters &c.

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order and of the holding of any parish meeting the town clerk or the clerk of the County Council as the case may require shall if and when necessary cause the register of parochial electors to be altered in such manner as may be requisite to give effect to the provisions of this Order.

Art. XXVIII. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect that is to say :— Settlement and removal of the poor.

(1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in any of the existing Parishes or Townships of Castle Church Cresswell Hopton and Coton Tillington Seighford or Stafford by reason of any residence completed or in the course of completion or of any act or thing done or in the course of being done or of any status condition right or privilege acquired or created or in the course of acquisition or creation—

- (i) in the existing Parish of Stafford ; or
- (ii) in the added part of Castle Church ; or
- (iii) in the added part of Tillington ; or
- (iv) in the added part of Hopton and Coton ; or
- (v) in the added part of Seighford ; or
- (vi) in that part of the existing Parish of Castle Church which by virtue of this Order will form the Parish of Castle Church ; or
- (vii) in that part of the existing Township of Hopton and Coton which by virtue of this Order will form the Township of Hopton and Coton ; or
- (viii) in that part of the existing Parish of Seighford which by virtue of this Order will form the Parish of Seighford ; or
- (ix) in the excluded part of Tillington ; or
- (x) in the existing Parish of Cresswell

shall be deemed to have acquired or to be in the course of acquiring in the first second third fourth and fifth cases a

A.D. 1916.

*Stafford
Order.*

settlement in the Parish of Stafford in the sixth case a settlement in the Parish of Castle Church in the seventh case a settlement in the Township of Hopton and Coton in the eighth case a settlement in the Parish of Seighford and in the ninth and tenth cases a settlement in the Parish of Cresswell and in each case as if the existing parish or township or the specified part of the existing parish or township were and had always been the parish or township or a part of the parish or township in which by virtue of this Article the person shall be deemed to have acquired or to be in the course of acquiring a settlement:

(2) Every person who at the commencement of this Order has acquired or is in the course of acquiring a status of irremovability from the Stafford Union by reason of residence—

- (i) in the existing Parish of Stafford; or
- (ii) in the added part of Castle Church; or
- (iii) in the added part of Tillington; or
- (iv) in the added part of Hopton and Coton; or
- (v) in the added part of Seighford; or
- (vi) in that part of the existing Parish of Castle Church which by virtue of this Order will form the Parish of Castle Church; or
- (vii) in that part of the existing Township of Hopton and Coton which by virtue of this Order will form the Township of Hopton and Coton; or
- (viii) in that part of the existing Parish of Seighford which by virtue of this Order will form the Parish of Seighford;
- (ix) in the excluded part of Tillington; or
- (x) in the existing Parish of Cresswell

shall be deemed to have acquired or to be in the course of acquiring the like status by reason of residence in the first second third fourth and fifth cases in the Parish of Stafford in the sixth case in the Parish of Castle Church in the seventh case in the Township of Hopton and Coton in the eighth case in the Parish of Seighford and in the ninth and tenth cases in the Parish of Cresswell.

Saving for
contribution
orders and
precepts.

Art. XXIX. Notwithstanding the alteration in the areas of parishes or townships effected by this Order all contribution orders made by the Guardians of the Poor of the Stafford Union and all precepts made by the Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made.

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxxiv.]
Provisional Order Confirmation (No. 3) Act, 1916.

Art. XXX.—(1) All sums in respect of rates made by the Overseers of the Poor of the existing Parishes of Castle Church and Seighford and the existing Township of Hopton and Coton and due or owing at the commencement of this Order shall be collected and recovered by the Overseers of the Poor of the Parishes of Castle Church and Seighford and the Township of Hopton and Coton as if this Order had not been made.

A.D. 1916.
Stafford
Order.
 Arrears of
 rates.

(2) All sums in respect of rates made by the Overseers of the Poor of the Parish of Tillington and due or owing at the commencement of this Order shall be collected and recovered in respect of the added part of Tillington by the Overseers of the Poor of the Parish of Stafford and in respect of the excluded part of Tillington by the Overseers of the Poor of the Parish of Cresswell.

Art. XXXI. Nothing in this Order shall affect the ecclesiastical divisions of any parish or township or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

Ecclesiastical
 divisions and
 charities.

Art. XXXII. Notwithstanding anything in this Order an authority affected by this Order shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Consent of
 Treasury to
 borrowing
 during war.

Art. XXXIII. This Order may be cited as the Stafford (Extension) Order 1916.

Short title.

The SCHEDULE above referred to.

PART I.—LOCAL ACTS.

Session and Chapter.	Short Title.
17 Vict. c. xxii. - - -	The Stafford Gas Act 1854.
39 & 40 Vict. c. cxcvi. -	The Stafford Corporation Act 1876.
43 & 44 Vict. c. lxxiii. -	The Stafford Corporation Act 1880.
59 & 60 Vict. c. lxxiii. -	The Stafford Corporation Act 1896.

[Ch. xxxiv.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Order Confirmation (No. 3) Act, 1916.

A.D. 1916.

PART II.—CONFIRMATION ACTS.

*Stafford
Order.*

Session and Chapter.	Short Title.	Order thereby confirmed.
45 & 46 Vict. c. lxi.	The Local Government Board's Provisional Orders Confirmation (No. 3) Act 1882.	The Stafford Order 1882.
48 & 49 Vict. c. lxii.	The Local Government Board's Provisional Orders Confirmation (No. 5) Act 1885.	The Stafford Order 1885.
50 & 51 Vict. c. cxii.	The Local Government Board's Provisional Orders Confirmation (No. 8) Act 1887.	The Stafford Order 1887.
52 & 53 Vict. c. cxvii.	The Local Government Board's Provisional Orders Confirmation (No. 16) Act 1889.	The Stafford Order 1889.
53 & 54 Vict. c. cxcii.	The Electric Lighting Orders Confirmation (No. 8) Act 1890.	The Stafford Electric Lighting Order 1890.
54 Vict. c. xxv.	The Local Government Board's Provisional Orders Confirmation (No. 3) Act 1891.	Order relating to Stafford dated 9th February 1891.
54 & 55 Vict. c. ccxi.	The Local Government Board's Provisional Orders Confirmation (No. 14) Act 1891.	The Stafford Order (No. 2) 1891.
62 Vict. c. xxviii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1899.	The Stafford Order 1899.
63 & 64 Vict. c. clxxvi.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1900.	The Stafford Order 1900.
3 Edw. 7. c. lviii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1903.	The Stafford Order 1903.
4 & 5 Geo. 5. c. cxxxiii.	The Local Government Board's Provisional Orders Confirmation (No. 13) Act 1914.	The Stafford Order 1914.
5 & 6 Geo. 5. c. xxxv.	The Local Government Board's Provisional Orders Confirmation (No. 3) Act 1915.	The Stafford Order 1915.

Given under the Seal of Office of the Local Government Board
this Seventeenth day of April One thousand nine hundred
and sixteen.

(L.S.)

WALTER H. LONG President.
H. C. MONRO Secretary.

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